



POLICE DEPARTMENT

April 1, 2025

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In the Matter of the Charges and Specifications	:	Case Nos.
- Against -	:	2022-27092
Sergeant Kamala Roper	:	2023-27728
Tax Registry No. 926029	:	
32 Precinct	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: David Green, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Ronald Hart, Esq.
225 Broadway, Suite 2815
New York, NY 10016

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2022-27092

1. Lieutenant¹ Kamala Roper, while on duty and assigned to 78 Precinct, on or about June 29, 2022, in Kings County, failed to obey a lawful order and instruction of supervising officers, to wit; Lieutenant Kamala Roper did not notify supervising officers prior to taking an Emergency Day.

A.G. 304-03, Page 1, Paragraph 2

COMPLIANCE WITH
ORDERS

Disciplinary Case No. 2023-27728

1. Lieutenant Kamala Roper, while assigned to 78 Precinct, on or about June 12, 2022, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said [Lieutenant] improperly voided a Driving While Intoxicated arrest in contradiction of evidence establishing probable cause.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 22 and 23, 2024, December 11, 2024, and January 10 and 29, 2025. Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. The Department called Captain Frantz Souffrant, Police Officer Jonathan Ruiz, Police Officer Gene Li, Police Officer Kevin Vargas, Sergeant Jonathan Tricoche, Detective Floretta Chow, Captain Joseph Antonio, Police Officer Terry Richardson, and Sergeant Korben Folk as witnesses. Respondent called retired lieutenant Acu Rhodes and Lieutenant Andre Frank, and testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty of both

¹ Respondent was a probationary lieutenant at the time of the incident. She was demoted to the rank of Sergeant in August 2023.

specifications and recommend she forfeit 60 vacation days and be placed on one-year dismissal probation.

ANALYSIS

Respondent stands charged with misconduct in two separate matters adjudicated in the same proceeding. The more serious matter involves an allegation that Respondent improperly voided a DWI arrest after responding to an incident scene on June 12, 2022. In the second matter, Respondent is charged with failing to obey an order to notify her supervisors prior to taking an Emergency day (“E-Day”) on June 29, 2022. The cases will be addressed separately.

Case No 2023-27728: Improperly Voided DWI Arrest

The following is a summary of the undisputed facts. On June 12, 2022, at approximately 0130 hours, Police Officers Terry Richardson and Jonathan Ruiz, responded to call concerning a person “passed out” in a vehicle parked on the sidewalk of 3rd Avenue, near President Street and Union Street in Brooklyn.

Officer Ruiz’s body-worn camera (“BWC”) captured footage of the entire investigation, including the subsequent arrival of multiple other officers, including Respondent and her driver, Sergeant Jonathan Tricoche. The video depicts that upon arrival, Officer Ruiz and Officer Richardson approach the vehicle and observe a young woman (“D.G.”) slumped over the steering wheel of a Nissan Altima. The vehicle is off, there is vomit outside of the vehicle, and there is no one else present. (Dept. Ex. 12 at 1:20-1:31; Tr. 281-85, 305) Before the officers greet D.G., another woman rushes to approach the officers and identifies the vehicle occupant as her daughter. D.G.’s mother informs the officers that her daughter was “not feeling well” as she “had a little bit too much.” (*Id.* at 1:26-1:31) D.G. then states, “I’m alright. I’m fine. That’s my mom. I

called her here because I don't feel good." (*Id.* at 1:30-1:38) While D.G. is speaking, her mother further informs the officers that her daughter "pulled on the sidewalk because she was drunk. She pulled onto the sidewalk so she don't hurt nobody." (Dept. Ex. 12 at 1:38-1:44; Tr. 288)

D.G. opens the driver's side door and voices that she is about to vomit on the sidewalk. (Tr. 286) Officer Ruiz tells D.G.'s mother, "Did you hear what you just told me? That she's driving a vehicle." (Dept. Ex. 12 at 1:50-1:53) D.G. cuts him off, proclaiming that she is "not driving a vehicle. And I called my mom and I pulled over on the sidewalk for a reason." (*Id.* at 1:53-1:58, Tr. 317) A male bystander (possibly the 911 caller) approaches the scene and suggests that D.G. needs medical attention. Both mother and daughter say "No," and D.G. offers, "I was coherent enough to call my mother. I just don't feel well." When Officer Richardson asks D.G. if she was drinking tonight, she is hunching over toward the sidewalk and mumbles "I'm not drunk" and something about "doing her alphabets." She insists she doesn't feel well and that everything she ate is "coming out." (*Id.* at 2:00-2:37)

Officer Ruiz then asserts, "Your mother already said that you were drunk." D.G. and her mother both deny the claim. While D.G. defiantly states, "No, I'm not drunk. I never said I was drunk," her mother claims, "No, no. She's not drunk, but she had a drink or two. There's a difference." D.G. also points out the vehicle is off. (Dept. Ex. 12 at 2:40-2:55) D.G. then throws up on the sidewalk and tells the officer to capture it on the dashcam. When her mother tells her not to give the officer a hard time, D.G. retorts, "I'm being aggressive but I'm in the car." Ruiz then questions why she used the word coherent if she is simply sick; she responds she doesn't feel well but is coherent to drive. When the officer tells her she shouldn't be drinking and driving, she offers that she pulled on the sidewalk and called her mom. She then chastises her

mother, "because you told them I had a little too much, now they think I'm drunk." (*Id.* at 2:55-4:30)

Officer Ruiz then interjects, "I'm not saying you're drunk. . . I said that's what your mother said... at the end of the day, you said you were drinking." D.G. shoots back, "I didn't say I was drinking, I said I wasn't feeling too well. You said I was drinking." The mother cuts in, "I said. . ." Ruiz asks, "So your mother is incorrect?" D.G. replies, "My mother is correct," before reasserting that she is not feeling well and accusing the officer of misconstruing her words. D.G. announces, "My father was a- I have a fallen officer's card. My father was [in] the 70 precinct." Several seconds later, D.G. says to her mother, "This is a scenario where you choose what you say wisely. 'A little too much.' Now he thinks I'm drunk and now he's calling for backup." (Dept. Ex. 12 at 4:31-6:02; Tr. 300)

D.G. then begins insisting the car was off as Officer Ruiz reasons that she could not have "pulled over" as she stated if she was not driving. As additional units arrive on scene, D.G. places her cell phone to her ear, while telling her mother, "Oh, now we have two cars. This is why I said, 'Watch what you say.' Now I have to do tests to prove that I'm not drunk." Her mother responds, "I understand that." Officer Ruiz walks off to greet and update Sergeant Korben Folk and Police Officer Kevin Vargas who arrive on scene with a Preliminary Breath Test ('PBT'). Police Officer Gene Li and his now-retired partner, Police Officer James Dieterich, also arrive on scene. During this time, D.G. exits the vehicle and stands near the rear of the driver's side of the vehicle. D.G. tells Officer Vargas, "He died as a cop for 9/11. And I gotta go through this. So I have to show my fallen officers card from the D.A., or what? Or you don't answer." (Dept. Ex. 12 at 8:00-9:41)

Sergeant Folk attempts to turn on the PBT, but it appears to be inoperable. He then asks, "Have you been drinking?" D.G. stands with her hands on her hips and states, "No. You want me to show you? Test me and I'll do the alphabet backwards." Sergeant Folk shines his flashlight on her face before walking off to try to fix the PBT. D.G. then makes a phone call to Detective Floretta Chow, an officer in the 70 precinct who she knew personally, and can be heard stating, "Hey. No, I'm not okay. Apparently, these cops—I pulled over on the sidewalk because I wasn't feeling well. Well, these cops think I'm incoherent, but I can say my alphabets backwards . . . I called my mother . . . So I don't know. There's two cars. Breathalyzer machine isn't working. I don't—I don't know. There's an ambulance there. I really truly don't know. I don't have that card. They think that I'm lying." Detective Chow was on vacation out of the country at the time of this call and gave D.G. the phone number for the 70 Precinct delegate, Officer Barton. (Tr. 217; Dept. Ex. 12 at 10:22-10:45, 13:03-13:37)

It is at this point that Respondent and Sergeant Tricoche arrive. Respondent's body-worn camera captured the entirety of her time on scene. (Dept. Ex. 10) Respondent first speaks to Officer Li, who informs her that when the first-on-scene officers approached D.G., she was vomiting while seated in the driver's seat of a car parked on the sidewalk. When Respondent asks about the keys and whether the car was on, Officer Li tells her he does not know because he just arrived on scene. (Dept. Ex. 10 at 1:04-1:12)

Officer Richardson then relays to Respondent that he and Officer Ruiz approached D.G. while she was behind the wheel and the car was off. Officer Richardson explains, "She pulled over 'cause she's feeling sick...Her mom said that her daughter was drinking, but her daughter's saying she wasn't drinking." Respondent questions why the car is on the sidewalk. Officer Richardson responds, "Because she wasn't feeling well." When Respondent asks, "So she pulled

the car onto the sidewalk?" Officer Richardson states, "Yeah, I'm like, why you didn't pull it in the parking spot than on the sidewalk? But she—she's not feeling well. So she pulled over and called her mom." While she walks toward D.G.'s vehicle, Respondent states, "the car should not be on the sidewalk." Off-screen Sergeant Folk can be heard stating "Yeah, Like I said, I have more than probable cause ..." Respondent replies, "Definitely." (Dept. Ex. 10 at 1:28-2:42)

Respondent approaches the vehicle and speaks with D.G. who is still on the phone. Respondent asks her to hang up. D.G. replies that she is talking with "P.O. Barton." Respondent again requests that D.G. hang up the phone; in turn, D.G. reads Respondent's last name aloud. D.G. finally hangs up when an unidentified male officer tells her, "You're being detained so hang up." When D.G. asks why she is being detained without having taken the breathalyzer test, Respondent replies, "Your car is on the sidewalk." D.G. hands her phone to her mother and Officer Vargas handcuffs D.G. While handcuffed, D.G. informs Respondent that her "father was a cop. He died from 7/11—9/11." She tells Respondent she has "somebody that's gonna call you in a minute 'cause I'm coherent enough." (Dept. Ex. 10 at 2:43-3:54)

Respondent then speaks with D.G.'s mother who asks, "What's—what's going on? Why, why are you taking her? She's sick though. She pulled over because she was sick. She wasn't." Respondent tells her to "calm down," before explaining that the Intoxicated Driving Testing Unit ("IDTU") needs to examine D.G. at the stationhouse. Respondent reasons that it is "not natural for a car to be pulled over on a sidewalk," and that she is "exhibiting symptoms of being intoxicated." (Dept. Ex. 10 at 4:35-5:08) Respondent then explains, "I'm taking her back to the precinct where the Highway Unit is going to administer a test for her to see if she's intoxicated.... It would be the same with like any, if she's not, she get cut loose. That's it. Okay?" D.G.'s mother then asks, "And if she is? Hypothetically speaking, if she is, then?" Respondent

replies, "If she is, then there's a whole process I'll—I'll alert you and I'll tell you." D.G.'s mother responds, "Oh my God, you going to run her up through the system. God, this is—this is bad." D.G.'s mother then mentions her deceased husband's name and that 78 Precinct officers were present at his funeral. Respondent responds in the affirmative. (Dept. Ex. 10 at 5:14-6:40)

Respondent returns her focus to D.G., seated in the back of a marked RMP, as she inquires about the location of her keys. D.G. insists that the keys were in her bag in the car despite her mother's assertion that she had already searched the car and the bag but could not find the keys. D.G. is then permitted to exit the RMP to search for the keys but is unsuccessful in finding them. Accordingly, Respondent tells Sergeant Tricoche to call Highway to the scene with an operable PBT. Sergeant Tricoche calls Highway, but they are not immediately available. (Dept. Ex. 10 at 14:58-15:05, 15:30-15:34) As a result, Respondent tells the other officers to pause the search for the keys, ordering the initial responding officers to stay with the vehicle and the remaining officers to return to the Precinct with D.G. (Dept. Ex. 10 at 16:01-16:04, 17:34-18:11)

Respondent also speaks to D.G.'s mother about the missing keys. D.G.'s phone rings and D.G.'s mother picks up the phone before handing it to Respondent. The person on the other end identified herself as "Detective Chow." Detective Chow, who is out of the country, explains that D.G. is the daughter of a former MOS that passed away due to a 9/11-related illness before Respondent interrupts and states that she would call Detective Chow from the precinct. Shortly after, Respondent turns off her body-worn camera. (Dept. Ex. 10 at 17:22-17:30; Tr. 220-22)

Officers Ruiz and Richardson stay at the scene to secure D.G.'s vehicle. Sergeant Folk and Officer Vargas transport D.G. back to the precinct. (Tr. 496) At the stationhouse, Sergeant Folk waits approximately twenty minutes for Respondent to arrive. During that time,

surveillance footage of the 78 Precinct, entered into evidence as Department's Exhibit 14, captures the desk officers processing D.G.'s arrest, filling out a pedigree card and entering her information into the command log. An unidentified female officer searches D.G. in front of the desk.

While D.G. was being processed at the stationhouse, Officers Richardson and Ruiz stayed on scene in their RMP, waiting for instruction on what to do with D.G.'s vehicle. An unidentified female employee from a bar "right next to" the scene approached the officers and returned the keys to D.G.'s car that had been missing. She told the officers that she had confiscated the keys from a female patron who "was not in her right mind to drive." Shortly, after receiving the keys, Officer Richardson recalled hearing that "IDTU had been canceled" for D.G. Officer Richardson then called Sergeant Folk to inquire about what they should do with D.G.'s car. Sergeant Folk told him that they should wait there because D.G. was "coming back to the vehicle." (Tr. 296-98)

Once Respondent arrives, she directs Sergeant Folk to void D.G.'s arrest and return her belongings. Respondent then places her phone to her ear and walks out of frame. (Tr. 331-36, 496; Dept. Ex. 14 at 1:20-8:35) After the conversation concludes, Sergeant Folk and Officer Vargas turn off their respective body-worn cameras. (Tr. 190-91) Officer Vargas then uncuffs D.G. and returns her belongings. (Dept. Ex. 14 at 9:59-10:19) Respondent proceeds to speak to D.G. while holding her hands. (Tr. 209; Dept. Ex. 14 at 10:50-11:21) Officer Tricoche approaches the two in conversation, pointing in the direction of the surveillance camera and whispers something in Respondent's ear. Respondent and D.G., still holding hands, move to an area out of the camera's line of sight to continue their conversation. (Tr. 210; Dept. Ex. 14 at 11:22-11:34) After approximately three minutes, Respondent and D.G. cease their conversation

and D.G. exits the stationhouse where her mother is waiting for her. (Tr. 192, 299) Respondent acknowledged D.G.'s arrest was voided at her direction, resulting in D.G. facing no criminal charges related to this encounter. (Tr. 496-98)

At issue is whether Respondent's decision to void the arrest was proper; the Department asserts it was not, as there was probable cause to arrest D.G. for DWI. Conversely, Respondent contends that she properly voided the arrest because she came to believe, during the course of her interaction with D.G., that she was not intoxicated. At trial, the Department presented testimony from multiple officers present on scene that observed indicia of intoxication as well as the testimony of Detective Floretta Chow, who spoke with D.G. on the phone while she was out of the country. Respondent presented her own testimony, along with the hearsay interviews conducted by IAB of an EMT present on scene and Police Officer Donald Barton, the 70 precinct delegate who briefly spoke with D.G. on the phone while she was on scene. For the reasons set forth below, I find the Department has met its burden of proof and established by a preponderance of the evidence that Respondent improperly voided this arrest.

Officers Richardson and Ruiz, the initial responding officers, both testified that they detected the smell of alcohol emanating from D.G.'s person and that she was "combative" and "very agitated." Officer Richardson also noted that D.G.'s eyes were glossy. (Tr. 80-81, 285-87) When D.G., alongside her mother, returned to retrieve her vehicle, Officer Richardson testified that she proclaimed, "You see, I told you I wasn't drunk," towards the officers as she retrieved her keys. Officer Richardson recalled wondering why someone had cancelled IDTU "for someone that was clearly drunk." (Tr. 92, 298-99) Officer Ruiz recounted feeling "shocked." He further contended, "To me and my partner, it appeared she was intoxicated." (Tr. 90-91)

As for the remaining officers present on scene, Sergeant Folk testified that in close proximity to D.G., he smelled alcohol on her breath and noticed her bloodshot, watery eyes. He asserted that he continued to smell alcohol when processing D.G. at the stationhouse. (Tr. 340) Sergeant Folk characterized her demeanor as defensive and argumentative and her speech as “a little slurry” at some points. (Tr. 348) He asserted that even without an examination, he had established sufficient cause to place D.G. under arrest. (Tr. 330-31) Similarly, Sergeant Tricoche, Respondent’s driver, recalled smelling alcohol emanating from a belligerent D.G. (Tr. 180-81) Based on his training and experience, the vomit, D.G.’s agitated state, and the smell of alcohol, Tricoche concluded that D.G. was likely intoxicated. (Tr. 180-81, 196-99)

Some of the officers who interacted with or observed D.G., however, did not recall smelling alcohol. Officer Vargas, who spent approximately ten minutes near D.G., but communicated with her only briefly and at a distance of more than four feet, did not recall smelling anything emanating from her person when he was less than two feet away from her. (Tr. 137, 154; Dept. Ex. 12 at 9:11-19:08) However, he did recount feeling “surprised” that D.G.’s arrest was voided. (Tr. 162) Officer Li also testified that he stood at least six feet from D.G. and he did not smell alcohol. He did agree that the vomit and the vehicle parked completely on the sidewalk were indicia of intoxication. (Tr. 123-24) Officer Li never communicated with D.G. directly and he spent the least amount of time near D.G. at distance of more than six feet a majority of the time. (Dept. Ex. 10 at 1:00-1:13; Dept. Ex. 10 at 27:25-29:11)

Detective Chow who was in Europe at the time of this incident, received a phone call from D.G. from the scene. She testified that she worked alongside D.G.’s father at the 70 Precinct and had known D.G. since “she was a little girl.” D.G. confided in Detective Chow like she was “a mom to her or an aunt.” On the date in question, D.G. called her “in distress.” She

believed D.G. called her for advice or guidance because she had been stopped and was not feeling well. Officer Chow recounted telling D.G. to calm down and asked to speak to the supervisor on the scene. She expressed that in doing so, she was not aiming to intervene but did want to make the supervisor on scene aware that this was the child of a deceased MOS, which she felt would make them do their “due diligence.”² She characterized D.G. as a generally excitable person who was upset on the call, but contended that she sounded overall normal to her. (Tr. 215-22, 231)

Respondent took the stand in her own defense and testified that on June 12, 2022, she responded to a call to verify an arrest near 3rd Avenue in Brooklyn. Already on scene were Officers Li, Richardson, and Ruiz and Sergeant Folk. Officer Li initially briefed her on the situation, stating that there was a car on the sidewalk and D.G. was with her mother. Respondent observed a car parked on the sidewalk and saw D.G. sitting inside the car with her feet outside the vehicle. (Tr. 478-479, 509, 516) Officer Richardson then informed Respondent that D.G. had admitted to parking on the sidewalk and that D.G.’s mother had disclosed that her daughter had “too much to drink.” Respondent also recalled Sergeant Folk telling her “all the signs are here of DWI.” She recounted that Sergeant Folk smelled alcohol on D.G. (Tr. 482-83)

Based on the observations relayed to her, particularly those made by Officer Folk,³ Respondent concluded that this was a DWI situation and decided to proceed with the arrest. She

² Chow testified that she either reached out directly to or gave D.G. the number of Officer Donald Barton, the delegate for the 70 Precinct because “[MOS] take care of our family members.” As Chow was not present, she thought Officer Barton “could deal with the situation.” (Tr. 227-29) Officer Barton was interviewed by IAB on September 15, 2022. He believed that D.G. reached out because she was stopped by police when she was not feeling well. He told her to “just cooperate and it would all get sorted out.” When asked, he reported there was no indicia of intoxication, “not from over the phone.” He subsequently spoke to Respondent who told him that in her view, D.G. was not intoxicated and was being let go. Barton asserted no special requests were made on behalf of D.G. during that call. (Resp. Ex. D at 6-8)

³ At trial, Respondent raised the issue that Folk erroneously gave her the impression he was first on the scene and that she was “angry” driving back to the command when she realized he was not because being first on the scene is “very important especially for DWI arrests.” The tribunal finds that this has little bearing when it comes to the

then directed that the officers transport D.G. to the 78 Precinct to wait for IDTU, as the on-scene PBT had malfunctioned. As Respondent was conferring with other officers, D.G. made a phone call; Respondent testified that she learned only later that it was Officer Barton from the 70 precinct. When Respondent approached D.G., she attempted to hand the phone to Respondent, but Respondent refused. Respondent testified that though D.G. was adamant, she told her “I don’t care who it is. I’m here to assess the situation.”⁴ (Tr. 485-86, 488 511, 516)

Respondent detailed that between leaving the scene and arriving back at the stationhouse, she changed her mind regarding the arrest, determining that there was no probable cause. (Tr. 487) She offered first her own observations of D.G., describing, “She was very coherent. She was very alert...Her gait was on point. The more I made contact with her is the more I’m realizing, it’s not so much a belligerent, it’s more of...just like a rude person.” Respondent emphasized that though she had decided to have D.G. transported to the precinct, she “realize[d] later on that the key fob was not even present at the location” and this “absolutely” changed her assessment regarding probable cause to arrest. She posed the question: “Where’s the probable cause? There’s no operability.” Respondent further opined, “Nobody saw her [driving],” “the car was “totally parked,” and neither Respondent nor the EMS personnel “smelled anything on her.” She highlighted that when she asked EMT personnel⁵ about their observations, they told

substantive observations conveyed by Folk, who it is undisputed arrived on the scene and first interacted with D.G. after Richardson and Ruiz but before Respondent. Folk was an experienced officer who was conveying what had transpired before Respondent arrived. (Tr. 483-84)

⁴ Respondent recounted talking with Officer Barton, who advised her the D.G.’s father was a deceased MOS, over the phone at the end of her tour “way after” she had voided the arrest. She stated this had “no bearing” on her decision making with respect to D.G. (Tr. 494-95) As for Detective Chow, Respondent attempted to call her back but never got through to her. (Tr. 550)

⁵ Emergency Medical Technician Alexander Zampelli did not testify, but was interviewed by IAB regarding the instant matter on July 6, 2022. In her interview, EMT Zampelli recounted that she did not observe D.G. display any signs of “severe intoxication.” Zampelli characterized D.G. as “combative,” “upset,” and “annoyed.” She did not detect the smell of alcohol on her breath. She refused all EMS care and Zampelli did not have further communication with her “based off her steady gait and alert orientation times four.” She also recalled overhearing D.G. stating that earlier she attended a party. (Resp. Ex. B at 2-3)

her “no, nothing” and described D.G. as “alert and oriented times four,” which Respondent took to mean “she’s aware of her surroundings...her coordination is on point. Everything is on point.” (Tr. 487-92, 497-98)

When Respondent got back to the precinct, she told Folk and Vargas that the arrest would be voided. Respondent claimed that she then spoke to D.G. privately before she left the precinct, reprimanded her for being rude and held her hand as she escorted her out. (Tr. 544-45) When asked why she did not wait for the IDTU unit to perform a sobriety test as originally planned, she asserted “when probable cause is not established, we have to void that arrest. It’s not there. I don’t have it. As a supervisor, if I don’t have probable cause then I’m taking someone into custody wrongfully and unlawfully and I didn’t want that to happen.” (Tr. 498)

Finally, when asked if D.G.’s mother asked for any special favors for her daughter as the child of a deceased officer, Respondent testified “she was just stating that the child’s father was a member of service.” She further asserted, “I actually told the mother that it does not matter who he is...The rules are the rules and the law is the law. There are procedures that have to be followed and guidelines that have to be abided by.” (Tr. 499-500)

Respondent is charged with engaging in conduct prejudicial to the good order of the Department when she improperly voided D.G.’s Driving While Intoxicated arrest in contradiction of evidence establishing probable cause. Patrol Guide procedure 210-13 states that an arrest should be voided when “there is reasonable cause to believe the prisoner did not commit the offense, or any related offense, or it is determined that no offense has been committed[.]”

Central to this case are conflicting accounts as to whether D.G. was intoxicated at the scene; if she was, voiding her arrest without so much as conducting breath testing would not be

proper. As such, this case hinges on an assessment of the credibility of the witnesses. When analyzing credibility, this Tribunal may consider such factors as witness demeanor, consistency of a witness' testimony, supporting or corroborating evidence, witness motivation, bias or prejudice, and the degree to which a witness' testimony comports with common sense and human experience. The ultimate decision of which accounts to accept, however, remains the exclusive province of the fact finder.

Here, the Department presented straightforward and credible testimony from a number of officers who arrived at the scene. Officers Richardson and Ruiz, as well as Sergeant Folk, identified multiple indicia of intoxication and remained consistent as they took the stand to repeat observations that they had maintained since the date in incident. Officer Richardson smelled alcohol on her breath and noted her eyes were glossy. Officer Ruiz detected the smell of alcohol on her breath. Sergeant Folk smelled alcohol on her breath and noticed her bloodshot, watery eyes. He also characterized her speech as "a little slurry" at some points.

The officers' conclusions that this was a DWI situation were also supported by spontaneous statements made by D.G. and her mother, captured on video. D.G.'s mother arrived on the scene and stated, without provocation that her daughter had too much to drink and wasn't feeling well. As for D.G., she denied driving, but stated multiple times at the outset of the encounter that she pulled onto the sidewalk. She also denied being drunk, but never denied having any drinks, offering "my mother is correct," when confronted with her mother's assertion that she had a little too much. The Tribunal finds these statements to be highly probative evidence that D.G. was drinking, operated her vehicle, and when she felt too sick to drive, called her mother for help.

The Tribunal carefully reviewed the video evidence in this case. While the videos cannot confirm what the officers on scene could smell (i.e. the odor of alcohol on D.G.), they do provide strong corroboration for the officers' testimony that they reasonably believed D.G. was intoxicated based upon her own words and actions. D.G. clearly stated that she drove her car onto the sidewalk, she initially admitted to drinking (although was not specific about when or how much), she vomited in the presence of the officers and she was very defensive in her interactions with them on scene. The video shows that D.G.'s gait was steady, her speech was not slurred and she was seemingly oriented in place and time. It also shows, however, that D.G. was not sure about the location of her car keys despite her confident assertion that the keys were in her car. Several officers can be seen on video searching for D.G.'s car keys but ultimately, they were not recovered. Despite the car keys not being found on scene, Respondent authorized D.G.'s arrest and had her transported to the precinct for the breathalyzer test.

In sharp contrast, Respondent's trial testimony was self-serving and appeared designed to minimize any culpability or misconduct on her part. Her purported reason for ultimately changing her mind, after directing D.G. be brought back to the precinct for testing and telling D.G.'s mother that her daughter was "exhibiting symptoms of intoxication" to deciding to let her go without a Breathalyzer, lacked the ring of truth and simply did not hold up against credible testimony from her subordinates and uncontroverted video evidence. It defies logic that Respondent went from stating D.G. was exhibiting intoxication symptoms, and then replying "definitely" to Sergeant Folk's statement that there was probable cause, to releasing this young woman and walking hand in hand with her out of the precinct.

At trial, Respondent primarily focused on two things that caused her to change her mind: (1) that there was no key fob in the vehicle (a fact she emphasizes that she did not learn until

after she authorized D.G.'s arrest) and (2) that she personally did not smell alcohol on D.G.'s breath and found that she appeared coordinated and coherent.

This Tribunal finds Respondent's version of events inconsistent with the other credible evidence adduced at trial. Respondent's statement that this could not be a DWI because there is "no operability" with the keys not being present, a fact she did not raise with the officers at the scene, does not take into account the credible statement relayed to her by Officer Richardson that D.G. admitted to "pull[ing] over 'cause she's feeling sick." The ignition being on or an observation that the individual was driving are certainly factors to be considered, but not wholly dispositive as to whether someone operated a vehicle while intoxicated⁶. Here, D.G. was parked on the sidewalk instead of the street, she admitted multiple times to Officers Richardson and Ruiz that she "pulled onto the sidewalk;" she was also observed vomiting on the sidewalk. Additionally, she was argumentative and curt with police officers and her mother for the entirety of the encounter. Multiple other officers who arrived before Respondent informed her of their observations of indicia of intoxication. Although Respondent's concern about the car's operability was reasonable on its face, it would not, when weighed against all the other information she had at the scene, definitively invalidate probable cause for the arrest and would not necessitate releasing D.G. before conducting a Breathalyzer as Respondent stated. In addition, when asked why she did not search for surveillance cameras to verify whether D.G. operated the vehicle and rectify her purported concerns of operability, Respondent glibly asserted that "nobody" would do that absent property damage or physical injury. (Tr. 519)

⁶ See *Dalton v. Ashcroft*, 257 F.3d 200, 205 (2d Cir. 2001) ("[I]n New York, a defendant can be found guilty of driving while intoxicated even if he or she is asleep at the wheel of a car whose engine is not running and evidence is adduced at trial that the vehicle never moved.")

Second, Respondent's assertion that she did not smell alcohol and found D.G. to be generally coherent and coordinated does not nullify the observations of the majority of the officers on scene. The officers who spent the longest time in D.G.'s presence and got closest to her were generally consistent that she was not incoherent or extremely unsteady but credibly testified, with no reason to fabricate, that they found other indicia of intoxication to be present, including the smell of alcohol on her breath. Respondent arrived on scene after D.G. vomited and later than the majority of officers on scene, so the passage of time could also account for the disparity in her observations and those of the other officers that testified. While EMT Zampelli stated that she did not detect intoxication symptoms, her hearsay statement was not subject to cross-examination about the breadth and length of her interaction with D.G. and as such, her account is less probative than those who testified. Most glaringly though, is that at the scene Respondent never expressed any personal belief that D.G. may not have been intoxicated nor did she raise any concern that the officers' observations did not align with her own. If Respondent believed that D.G. was not intoxicated, as a highly experienced supervisor, she would have likely expressed that to her subordinates and attempted to gather additional information. Here, Respondent expressed no such concerns and proceeded to approve the arrest. I find her statements at trial on this point to be a recent fabrication aimed at covering up a decision to void an arrest for which there was probable cause.

In sum, the Tribunal finds that the vast majority of Respondent's testimony was illogical, and intentionally contrived after the fact to minimize her culpability. Respondent's dubious account of why she changed her mind about proceeding with the arrest falls apart when weighed against the logical, straightforward testimony from multiple officers who were also on the scene, believed there was reasonable cause to arrest and testified that they felt shock and surprise that

Respondent let D.G. go. Moreover, the undisputed facts that were readily apparent to Respondent at the scene and to this Tribunal on the video— an argumentative individual behind the wheel of a vehicle that she had parked on the sidewalk and who vomited on the sidewalk— while not dispositive, only served to bolster the narrative the officers provided to Respondent about why there was probable cause for the arrest. At the bare minimum, this was an individual who should have been breathalyzed for the safety of herself and the public before being released.

Having carefully considered the voluminous record in this matter, the Tribunal concludes that Respondent, whether out of sympathy for a young woman who had lost her police officer father, or due to the phone calls that were being made by and for D.G., decided not to proceed with an arrest, already in progress, for which there was probable cause. Accordingly, Respondent is found guilty of improperly voiding this arrest in contradiction of evidence establishing probable cause.

Case No. 2022-27092: Unauthorized Emergency Day

This case involves Respondent's alleged failure to adhere to policies related to the taking of emergency days, commonly referred to as E-days. The following facts are undisputed. On March 21, 2022,⁷ Captain Frantz Souffrant, the Commanding Officer of the 78 Precinct, sent an email to all officers of the 78th Precinct stating:

“Anyone who wishes to take lost time, take an E/Chart day(s), or change their tour must get authorization from the next ranking supervisor. For Lieutenants, myself or the XO will be your point of contact.” (Dept. Ex. 3)

⁷ Tracking records confirm that Respondent did not open this e-mail until August 21, 2022, five months after it was sent. (Tr. 44, 505) According to Captain Souffrant and not disputed by Respondent, he recirculated this email when new supervisors joined the command and provided a physical copy. (Tr. 44, 65)

On May 11, 2022, Respondent was scheduled to report for duty at 0650 hours as the second platoon commander. That morning, she had her daughter call the 78 precinct and report to the desk officer that Respondent was not feeling well and would not be coming in. Neither Captain Souffrant nor Captain Antonio received direct notification from Respondent. Upon being informed that Respondent had taken an emergency day, Captain Souffrant directed Captain Antonio to speak with Respondent about adhering to the policy outlined in his email. During a one-on-one conversation, Antonio reminded Respondent of the CO's directives and documented the issue with a "negative CRAFT."⁸ No penalty was imposed related to the May 11th absence (Tr. 44-46, 253-55, 463-65)

On June 29, 2022, exactly seven weeks later, Respondent was scheduled to serve as the midnight (first) platoon commander working 2315 x 0750 hours. Platoon commanders oversee the entire tour of duty and have both multiple sergeants and over twenty police officers under their command. During the midnight platoon, the platoon commander is often the highest-ranking person in the precinct and works with just one other supervisor who oversees the desk. (Tr. 244-46, 251, 255-56, 403, 457) Prior to her tour, Respondent called the desk officer, Lieutenant Rhodes, to inform him that she needed to take an emergency day because her child was sick. Lieutenant Rhodes acknowledged the notification and granted the E-Day. Whether he was authorized to do so is central to the dispute at bar. (Tr. 407-11, 457-60)

At 0022 hours, over an hour after her tour was scheduled to begin, Respondent sent an email to both captains, stating:

Please be advised that I had to request a day off for Wednesday, June 29, 2022.
(Tr. 461; Dept. Ex. 4)

⁸ Respondent maintains she did not learn of the negative craft until September 2022, when she received a Command Discipline related to a subsequent incident. (Tr. 465)

Twenty-two minutes later, Captain Souffrant responded:

“There was plenty of time to text or call myself or the XO as both of us were working today, yet you chose not to request permission from either of us. Understand there will be disciplinary action for failing to properly notify your immediate supervisors.”

Consequently, in September 2022, Captain Souffrant issued a Schedule “A” Command Discipline related to the June 29 incident, which Respondent rejected during the adjudication process. (Resp. Ex. C; Tr. 49, 52, 471-72)

The Department asserts that Captain Souffrant’s directive about E-days constituted a lawful order and that Respondent was obligated to adhere to this procedure put in place by her Commanding Officer, a procedure she had been warned about just weeks before, which fostered efficiency and allowed the Commanding and Executive Officers to immediately learn if there was a potential issue with lieutenant coverage. Captain Souffrant explained he put this procedure in place due to a “gap” in the notification system he had observed in his prior command, where lieutenants were calling the desk sergeant to get a day off without notifying a ranking supervisor. He explained he put the procedure in place as a “safeguard” so that if a lieutenant needed an E-Day off last minute for an emergency, they would have to notify a higher-up supervisor, not simply notify the desk. He asserted that it was “very common” for Commanding Officers to implement certain administrative procedures that allowed them to ensure efficiency within their command. (Tr. 41-43)

Captain Antonio further detailed in a straightforward, logical manner that there would often be just two supervisors scheduled for a given tour, especially the midnight tour, and that E-Days need to be requested because “unfortunately sometimes we don’t have the manpower to have someone not show up at work. Sometimes they have to show up at work until we get

coverage.” He added, “we try to do our best [for the officers], obviously.” (Tr. 244-46, 250-51) Captain Souffrant acquiesced that Lieutenant Rhodes was in a position to approve an E-Day for Respondent “technically as per the administrative guide but again, I put out some strict guidance and everyone was aware.” Captain Antonio echoed that Lieutenant Rhodes did not have authority to grant an E-Day due to Captain Souffrant’s guidelines. (Tr. 48, 256)

Respondent acknowledged at trial that she did not reach out to Captains Souffrant or Antonio prior to her tour, but asserts that she was in full compliance with the Administrative Guide. She testified that on the day in question, she was very concerned about her daughter who had collapsed in the bathroom vomiting with a rapid pulse and believed she would need to call 911. When her daughter’s pulse slowed a bit, she quickly dialed the desk number which she knew “by heart” and advised the desk officer, Lieutenant Rhodes, of the situation. She did not then contact Captain Souffrant because she was tending to her daughter. Respondent testified that she did not ultimately end up calling 911 as her daughter did not want to go to the hospital because of the COVID risk. Once her daughter’s condition stabilized, Respondent remembered her conversation with Captain Antonio the prior month about notifying the CO and the XO for absences. She then emailed both captains so they would “be aware I’m not making it in.” Respondent testified that she subsequently rejected the Command Discipline because she found that issuing a CD for this lacked compassion and acknowledgement of the fact that she was dealing with an “extreme emergency” with her daughter and that no reasonable person could be expected to think rationally at such a time.⁹ (Tr. 457-61, 476-77)

Administrative Guide § 324-05 provides, “If an emergency situation arises and a uniformed member of the service requests an emergency excusal day (E-day) for their next

⁹ Respondent entered into evidence an email from May 23, 2022, where she notified Captain Antonio of a family emergency and a request for lost time, which was approved. (Resp. Ex. E)

scheduled tour of duty, the requesting uniformed member of the service must receive approval from the desk officer on duty at the time of the request. The parties do not dispute that Respondent was technically in compliance with this provision of A.G. 324-05. At issue is whether Respondent committed sanctionable misconduct by failing to follow Captain Souffrant's directive that lieutenants under his command contact him or Captain Antonio directly and receive approval from a higher-ranking supervisor. For the reasons set forth below, I find that this constituted misconduct.

Beyond the narrow procedure related to E-Days in A.G. 324-05, A.G. 304-05 requires that officers “obey lawful orders and instructions of supervising officers.” To establish that Respondent failed to obey a lawful order, the Department must prove that: (1) the superior communicated an order to the Respondent which she heard; (2) the content of the order was clear and unambiguous; and (3) Respondent willfully refused to obey the order. *See* Disciplinary Case No. 2021-23203 (Sept. 16, 2022); Disciplinary Case No. 2016-16421 (Oct. 23, 2017) citing *Dept. of Corrections v. Hipp*, OATH Index No. 337/00 (Dec. 3, 1999)

Having carefully considered the evidence and testimony, I find that Captain Souffrant communicated an order, which was direct, clear and unambiguous, to lieutenants (including Respondent) in his command on multiple occasions via email and Respondent disobeyed it. At trial, Respondent acknowledged on cross-examination that she understood the directive set forth in the March 21, 2022 email when she “skimmed” it a few days after it was sent. (Tr. 505-06) I further find Respondent was reminded of this procedure by Captain Antonio in May 2022 when she failed to adhere, and despite having it brought to her attention, she willfully disobeyed the order again on June 29, 2022.

Respondent, as a supervisor with substantial responsibility in the 78 Precinct as the officer in command of the midnight tour, should have notified her Commanding or Executive Officer, as per well-established procedure to avoid coverage deficits amongst lieutenants. While the Tribunal is mindful and empathetic that Respondent's daughter was experiencing a health emergency, ultimately the record does not support a finding that the situation was so dire that Respondent could not call or text one of either Captain Souffrant or Antonio at the same time or immediately after notifying the desk officer. This is especially true where there is credible evidence in the record that Respondent violated and was warned about this policy the month prior when requesting another E-Day and that she had adhered to it when requesting lost time for a family emergency in the interim between the two incidents. Supervisors, particularly platoon commanders like Respondent, remain responsible for properly notifying their commands even when dealing with personal illness or family emergency so that coverage can be expeditiously found.

The Tribunal acknowledges that in this situation, Respondent did contact Captains Souffrant and Antonio by email an hour after her tour started in an attempt to comply with this directive. However, this notification wholly disregards the very reason for the policy. Respondent's actions unnecessarily created a situation where her command could have been short-staffed and left with inadequate supervision. She ran afoul of her Commanding Officer's procedure for E-Days for the second time within a span of seven weeks and in doing so failed to comply with a lawful order. Having considered the evidence and testimony in this *de novo* hearing, the Tribunal finds Respondent is found guilty as charged.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on March 1, 2000, has been found guilty of both specifications in both cases. With regard to the misconduct in Case No. 2022-27092, Respondent's failure to make a timely notification to the command, by not contacting her supervisors as required to secure an E-Day, was a direct violation of a lawful order given by her supervisor. The Disciplinary Penalty Guidelines state that failure to comply with a lawful order carries a presumptive penalty of 20 days, a mitigated penalty of 15 days and an aggravated penalty of 30 days. Given the medical nature of the situation with Respondent's daughter on the date of the charged misconduct, and the absence of evidence that there was any negative impact on the command's ability to secure coverage, the Tribunal is recommending the mitigated penalty of 15 vacation days for this infraction.

In Case No. 2023-27728, Respondent has been found guilty of engaging in conduct prejudicial to the good order, efficiency or discipline of the Department by improperly voiding a DWI arrest. This is a more serious offense warranting a more significant penalty. The Department Advocate is recommending termination. While "improperly voiding an arrest" is not a specific category contemplated by the disciplinary matrix, it does provide a wide range of penalty options from training to termination for violations of "good order, efficiency or

discipline of the Department” with no presumptive penalty. Accordingly, given the broad discretion granted by the Disciplinary Guidelines and for the reasons set forth below, this Tribunal recommends that Respondent be placed on dismissal probation and forfeit an additional 45 vacation days for this specification.

The Tribunal was unable to identify a case involving similar circumstances of a supervisor voiding a DWI arrest in contravention of evidence establishing probable cause. Without analogous precedent as a clear guidepost, the Tribunal is left to consider all the relevant facts and circumstances in coming to a fair penalty recommendation which adequately addresses the seriousness of the misconduct. Preliminarily, it must be noted that Respondent has an unblemished record in her twenty-five year tenure with the Department. Several witnesses, including some called by the Department, spoke to her competence as a supervisor, notwithstanding the incident for which she is currently on trial.

Nonetheless, Respondent's decision to afford D.G. a measure of leniency by directing subordinate officers to void her otherwise valid arrest, not only demonstrated a serious lapse in judgment, but jeopardized public safety. Members of this Department, especially leaders, are rightfully expected to perform their duties in a manner which survives later scrutiny. Instead of leading by example, Respondent set a precarious precedent for her subordinates in taking these actions.

Respondent very clearly explained to D.G.'s mother on scene, that she was transporting her daughter to the precinct to have her tested for intoxication, which signals to the Tribunal that Respondent reasonably believed D.G. could be unfit to drive. Rather than taking the extra step of actually testing D.G. to confirm or dispel this rational belief, Respondent released her from the precinct, allowing D.G. to pick up her car and drive, thereby potentially putting herself and other

members of the public in danger. Respondent allowed her understandable sympathy for the daughter of a deceased member of service to trump the impartial exercise of her duties, which above all, include fostering public safety, and the fair application of the law.

Moreover, Respondent's failure to accept responsibility for her decision to improperly void this arrest was further aggravated by the self-serving and often misleading narrative she provided to this Tribunal at trial. Rather than acknowledging her poor judgement on the night in question, she asserted, with steadfast conviction, that she made the right decision by voiding a DWI arrest without first confirming with a breathalyzer whether or not the driver was intoxicated. Respondent's pronounced deviation from sound decision-making is especially concerning given her 25 years of experience on the force.

The collective actions exhibited by Respondent in these two incidents undermine the high level of integrity and good judgement expected from members of this Department. Taking all of the relevant circumstances into account, a significant penalty, short of separation, but designed to have a deterrent effect and also allow for monitoring of Respondent's decision-making going forward, is warranted in this case. Accordingly, the Tribunal recommends that Respondent be DISMISSED from the New York City Police Department, but that her dismissal be held in abeyance for a period of one year pursuant to Administrative Code § 14-115 (d) during which time she is to remain on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. The Tribunal further recommends that Respondent forfeit a total of 60 vacation days.

APPROVED
JUN 27 2025
Jesse Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,

Vanessa Facio-Lince
Vanessa Facio-Lince
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
SERGEANT KAMALA ROPER
TAX REGISTRY NO. 926029
DISCIPLINARY CASE NOS. 2022-27092 & 2023-27728

Respondent was appointed to the Department on March 1, 2000. On her three most recent performance evaluations, she received a 2.5 rating of “Below Competent” for a period spanning February to August 2022, a 3.5 rating of “Highly Competent/Competent” for a period spanning October 2021 to February 2022, and a 4.5 rating of “Extremely Competent/Highly Competent” for 2018. She has been awarded two medals for Meritorious Police Duty and six medals for Excellent Police Duty.

Respondent has no formal disciplinary history.

For your consideration.

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials